

Vendor Disclosure & Contract Checklist — Tasmania

Your obligations as a seller — get this right, because there's no cooling-off period to smooth over gaps.

Correct as at July 2026. General information only, not legal advice. Your contract of sale should be prepared with a conveyancer or solicitor — this checklist helps you gather what they'll need, not replace their advice.

Section 1 — Understanding Your Position as a TAS Vendor

- ☐ [] **Know that Tasmania has no statutory cooling-off period for either party**, similar to Western Australia. This makes accurate, complete disclosure and a properly prepared contract especially important — once your buyer signs, there's no grace period during which incomplete information can be quietly corrected without risk.
- ☐ [] **Understand your general disclosure obligations**. Known material defects should be disclosed to avoid later disputes or claims, and misleading or deceptive conduct in your sale process carries real legal risk.
- ☐ [] **Work with your conveyancer or solicitor to prepare the contract properly before marketing begins** — given there's no cooling-off buffer, a well-prepared contract reduces the risk of disputes arising after a binding signature.

Section 2 — Information to Gather for Your Conveyancer/Solicitor

- ☐ [] **Title details and any encumbrances** — mortgages, easements, covenants affecting the land.
- ☐ [] **Zoning and planning information**.
- ☐ [] **Known building work history and any relevant approvals**.
- ☐ [] **Strata records**, if applicable — recent meeting minutes, financials, sinking fund details, and known disputes or special levies.
- ☐ [] **Any known defects or issues** you're aware of, particularly damp or structural matters given Tasmania's climate — even if not immediately obvious, full disclosure protects you from post-settlement disputes.

Section 3 — Underquoting and Price Transparency

- ☐ [] **Discuss price guide practices with your agent**. Misleading price conduct can raise consumer protection issues regardless of the specific state regulatory framework — ask your agent how they'll represent price expectations to prospective buyers.
- ☐ [] **Don't ask your agent to advertise a misleadingly low price to generate interest**.

Section 4 — Auction and Private Treaty Considerations

- ☐ [] **Understand there's no cooling-off period regardless of sale method** in Tasmania — both auction and private treaty buyers are immediately bound upon signing.
- ☐ [] **Ensure your contract is genuinely complete and accurate before marketing begins**.

Section 5 — Final Checks Before Going to Market

- ☐ [] **Confirm your contract of sale is complete and reviewed by your conveyancer/solicitor** before your first open home.
- ☐ [] **Cross-check the contract against your own knowledge of the property** — flag any inconsistency with your conveyancer/solicitor immediately.
- ☐ [] **Keep a copy of everything provided to buyers**.

Quick Reference — TAS Vendor Disclosure Essentials

Requirement	Key Detail
Cooling-off period	None — for either party, either sale method
Contract preparation	Conveyancer/solicitor, before marketing begins
Disclosure obligations	Avoid misleading/deceptive conduct; disclose known material defects
Strata records	Required if applicable — gather early

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